1928

Executive Order

TOIYABE NATIONAL FOREST

NEVADA

Under authority of the Act of Congress approved June 4, 1897 (30 Stat., 11, 34–36), and on the recommendation of the Secretary of Agriculture, it is hereby ordered that the boundaries of the Toiyabe National Forest as modified by the Proclamation of December 10, 1910, be further modified by eliminating therefrom the following described lands, in the State of Nevada:

In T. 9 N., R. 33 E., Secs. 1, 2, 3, 10 to 15, inclusive;
In T. 10 N., R. 33 E., Secs. 8, 9, 10, 11, 14, 15, 16, 17, 20 to 27, inclusive, 34, 35 and 36;
In T. 9 N., R. 34 E., Secs. 1 to 18, inclusive, 21, 22, 23 and 24;
In T. 10 N., R. 34 E., Secs. 19, 20, 29 to 36, inclusive;
Mount Diablo Meridian.

It appearing proper and necessary, in the interest of equal opportunity and good administration, that all of such excluded lands subject to disposition should be restored to settlement in advance of entry, it is hereby ordered, pursuant to the authority reposed in me by the Act of September 30, 1913 (38 Stat., 113), that such lands, subject to valid rights, shall be open to actual settlers only under the provisions of the homestead laws for a period of twenty-eight days from and including 9 o'clock a. m., standard time, on the fifty-sixth day from and after the date of this order, and thereafter to entry and disposition under any and all of the public land laws applicable thereto.

Persons who go upon any of the lands to be restored as herein provided and perform any act of settlement thereon from and including the date of this order until 9 o'clock a. m., standard time, on the fifty-sixth day from and after the date hereof, or who are on or are occupying any part of such lands at said hour, except those having valid subsisting settlement rights initiated prior to reservation and since maintained, will be considered and dealt with as trespassers and preference will be given the prior legal applicant, notwithstanding such unlawful settlement or occupancy: Provided, however, that nothing herein shall prevent persons from going upon and over the lands to examine them with a view to thereafter going upon and making settlement thereon when the lands shall become subject thereto in accordance with this order. Persons having prior settlement rights, as above defined, will be allowed to make entry in conformity with existing law and regulations.

WOODROW WILSON

THE WHITE HOUSE,
4 May, 1914.

[No. 1928.]